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April 21, 2026

ENGROSSED HOUSE  
BILL NO. 3974

By: Caldwell (Trey), Cantrell,  
Kane, and Strom of the  
House

and

Paxton of the Senate

An Act relating to the Governmental Tort Claims Act; amending 51 O.S. 2021, Section 153.1, which relates to actions associated with the housing of inmates; limiting actions to specific incarcerating entity; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 51 O.S. 2021, Section 153.1, is amended to read as follows:

Section 153.1. A. Nothing in the Governmental Tort Claims Act shall be construed as allowing an action or recovery against this state, against any city, town or county that is the sole beneficiary of a public trust, or against any employee of this state or any city, town or county of this state due to the housing of federal inmates or inmates from another state in facilities owned or operated by private prison contractors. If a public trust that has as its sole beneficiary a city, town or county has a facility that houses federal inmates or inmates from another state, the immunity

1 provided for in the Governmental Tort Claims Act shall ~~not~~ apply to  
2 that trust.

3 B. In an instance of a shared inmate housing facility by any  
4 combination of the state, cities, counties, or tribes any otherwise  
5 allowable action or recovery by or on behalf of an inmate, shall be  
6 limited to the specific state, city, county or tribes responsible  
7 for placing the inmate in such shared inmate housing facility.

8 SECTION 2. It being immediately necessary for the preservation  
9 of the public peace, health or safety, an emergency is hereby  
10 declared to exist, by reason whereof this act shall take effect and  
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY  
13 April 21, 2026 - DO PASS  
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